



POLICE DEPARTMENT

November 22, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202305225 (Incident Date: June 1, 2023) regarding Police Officer Devon Ruiz, Tax No. 959168 (DADS No. 2024-31963), and Police Officer Jeffrey Minaya, Tax No. 962622 (DADS No. 2024-31962)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202305225, pertaining to Police Officers Devon Ruiz and Jeffrey Minaya. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against said officers would be detrimental to the Police Department's disciplinary process.

In this matter, an individual approached Police Officer Ruiz and Police Officer Minaya and reported that the complainant was lying unresponsive outside the building. Upon approach, the officers encountered the complainant laying outside of the building on the grass, exhibiting signs of intoxication. The complainant eventually got up and acted aggressive to the officers, slurring his words, and had an odor of alcohol emanating from his breath. The complainant took a fighting stance with EMS when they asked him to go to the hospital, and acted aggressive towards Police Officer Minaya after he told him to stop turning and twisting the spotlight on the NYPD vehicle. After Police Officer Minaya ordered him to stop, the complainant proceeded to state "You want to fight?", and took off his jacket and shirt in an aggressive manner. The complainant was exhibiting signs of active aggression to Police Officer Minaya. Police Officer's Ruiz's response to the complainant's actions do not warrant discipline. Police Officer Ruiz acknowledged he made the threat because the complainant was posing a threat to Police Officer Minaya and he was going to deploy the CEW if the complainant attempted to fight Police Officer Minaya. Given that the complainant was exhibiting active aggression towards Police Officer Minaya and verbally threatened to fight him, the threat of force was justified. Additionally, Police Officer Ruiz's remark effectively deescalated the situation, as the complainant walked away from the officers after Police Officer Ruiz made the remark.

Police Officer Minaya's use of force was also justified to apprehend the complainant and

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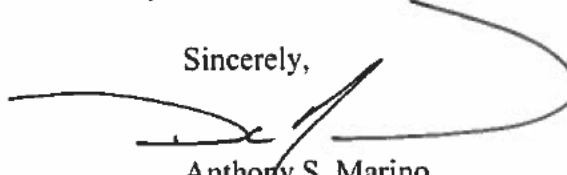
remove him to the hospital. The Police Commissioner has determined that the body worn camera footage is clear that Police Officer Minaya's use of force was necessary to remove the complainant to the hospital, and was only utilized after numerous efforts were made by the officers to gain voluntarily compliance, all of which were unsuccessful. The complainant actively resisted the officers by exhibiting physical aggression and verbally signaling an intent to avoid or prevent being taken into custody. The Police Commissioner has determined Police Officer Minaya's use of force was within Department guidelines.

The Police Commissioner has also determined the search and frisk by Police Officer Ruiz was within Department guidelines. Patrol Guide Procedure No. 221-13 (Mentally Ill or Emotionally Disturbed Persons), states that when an EDP has been restrained, the uniformed member of the service shall "remove property that is dangerous to life or will facilitate escape." Police Officer Ruiz acknowledged he searched and frisked the complainant's pants pocket after he observed the head of a screwdriver sticking out of it, which is consistent with the body worn camera footage. Police Officer Ruiz stated he proceeded to remove another screwdriver, a pair of pliers, the handle of a razor, a lighter, and a wig. Police Officer Ruiz's frisk and search was justified and no disciplinary action should be taken. Additionally, the Police Commissioner also finds that the frisk of the complainant by Police Officer Minaya was within Department guidelines, and no disciplinary action should be taken. Police Officer Minaya's frisk was also done to ensure the complainant did not have any weapons on him prior to removing him to the hospital.

Finally, the Police Commissioner has determined that both officers will receive no disciplinary action in regard to the business card allegations. The frisk and search conducted by these officers were conducted while safeguarding an EDP, who was being removed to the hospital. The actions of these officers were to ensure the safety of EMS and the hospital staff, as per Department guidelines. The officers did not stop the individual under a Debour level encounter. The Police Commissioner has determined this incident does not amount to a law enforcement activity as per Administrative Guide Procedure No. 304-11.

Police Officer Minaya and Police Officer Ruiz both have no formal disciplinary history and no prior substantiated CCRB cases. Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to take no disciplinary action against Police Officers Ruiz and Minaya for the alleged misconduct.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

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November 26, 2024

The Honorable Jessica Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, New York 10038

Re: CCRB Case No. 202305225 regarding Police Officer Devon Ruiz (Tax #959168) and
Police Officer Jeffrey Minaya (Tax #962622)

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated November 22, 2024 (hereinafter referred to as the “letter”) informing the Civilian Complaint Review Board (CCRB) of the Police Commissioner’s intent to impose no disciplinary action against Police Officers Devon Ruiz and Jeffrey Minaya for the substantiated allegations stemming from the above referenced CCRB complaint.

Regarding specifications 2 & 3 against PO Ruiz and specification 2 against PO Minaya, the CCRB received training from the NYPD Legal Department that explained the NYPD requires members of service to frisk and search individuals before placing them in an ambulance for removal to the hospital. The Commissioner’s determination to use Provision 2 for these specifications is correct.

Regarding specification 1 against PO Ruiz, the CCRB recently reviewed its policies regarding threats. If a threat is used to gain compliance with a lawful purpose, the threat will be determined to be within guidelines. Based upon this policy, the Commissioner’s determination to use Provision 2 for this specification is correct.

The CCRB respectfully disagrees with the Department’s determination regarding Specification 4 against PO Ruiz and Specifications 1 & 3 against PO Minaya, and requests that the NYPD give the CCRB the opportunity to file charges & specifications for just these specifications against both members of service and that the Department serve those charges upon PO Ruiz and PO Minaya.

Respectfully submitted,

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

November 27, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202305225 (Incident Date: June 1, 2023) regarding Police Officer Devon Ruiz, Tax No. 959168 (DADS No. 2024-31963), and Police Officer Jeffrey Minaya, Tax No. 962622 (DADS No. 2024-31962)

Dear Mr. Darche:

The Police Department has reviewed your letter, dated November 26, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Devon Ruiz and Police Officer Jeffrey Minaya. Nevertheless, it is maintained that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Ruiz and Police Officer Minaya for the reasons expressed in my November 22, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, and as per the direction of Interim Police Commissioner Donlon in the November 22, 2024 letter, no disciplinary action is to be imposed against Police Officer Ruiz and Police Officer Minaya for the alleged misconduct.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office